4/9/2025 - 25-E-0072/25-G-0073 - Public Statement Hearing

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 25-E-0072 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

CASE 25-G-0073 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

PUBLIC STATEMENT HEARING

DATE: APRIL 9, 2025 AT 5:30 P.M.

LOCATION: Webex

BEFORE: ALJ NICHOLAS PLANTY

ALJ JAMES A. COSTELLO

ALJ TARA KERSEY

Reported by Vanessa Gonzalez

4/9/2025 - 25-E-0072/25-G-0073 - Public Statement Hearing

(The hearing commenced at 5:30 p.m.)

THE COURT REPORTER: Today is April 9th, 2025. And this is going to be part two of two for docket number 25-E-0072 and 25-G-0073. We're good to go.

A.L.J. PLANTY: We are now on the record. I call case 25-E-0072, Proceeding on Motion of the Commission as to the Rates, Charges, Rules, and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

And case 25-G-0073, Proceeding on Motion of the Commission as to the Rates, Charges, Rules, and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

Good afternoon and welcome. My name is Nicholas Planty. I am an administrative law judge for the Department of Public Service. Administrative Law Judges James Costello and Tara Kersey are also here today, and together we are responsible for presiding over the hearings in these cases and the development of a complete record in these proceedings.

Assisting us today are Joseph White and Esmin Brown-Anderson from the Department's Office

4/9/2025 - 25-E-0072/25-G-0073 - Public Statement Hearing of Consumer Services.

We are here for a public statement hearing that was noticed on March 11th, 2025. We will be holding additional in-person public statement hearings throughout Con Edison's service territory. A notice of those in-person public statement hearings will be issued in due course.

I will now briefly provide some background information before we turn to receiving your comments. Con Edison filed amendments to its electric and gas tariff schedules on January 31st, 2025, proposing to increase its annual electric and gas delivery revenues for the twelve-month period ending December 31st, 2026. Con Edison proposes to increase its electric delivery revenues by approximately 1.6 billion dollars, which is an 11.4 percent increase in total revenues, or an 18.0 percent increase in base delivery revenues; and its natural gas delivery revenues by approximately 440 million dollars, which is a 19.1 percent increase in total revenues, or 25.1 percent increase in base delivery revenues.

The actual bill impacts of these proposed changes on any particular customer class

will vary based upon revenue allocation and rate design. Under New York State law, the Public Service Commission must consider a utility's proposal and may adopt or reject it in whole or in part, or modify it. This hearing is being held so you can provide your comments on Con Edison's proposals for the Commission's consideration.

The Public Service Commission has seven members; the Chairperson, Rory Christian, and Commissioners James Alesi, David Valesky, John Maggiore, Uchenna Bright, Denise Sheehan, and Radina Valova.

As I mentioned earlier, the purpose of this hearing is to is to provide you with an opportunity to tell the Commission your thoughts on Con Edison's rate proposal. This is not an evidentiary hearing where you provide testimony under oath, nor is it a question and answer session. Rather, it is a forum for you to provide comments for the Commission's consideration. We have a court reporter joining us who will prepare a transcript of the hearing, which will be included in the official record of the proceeding. When it is ready, the transcript will be available on the Department of

Public Service website. If you prefer not to speak at a hearing, there are a variety of other ways to bring your comments to the attention of the Commission. As indicated in the March 11th notice, you can do so through the Department's website, by regular mail, or by phone. Regardless of how comments are submitted, they will be given equal consideration. If your comments today are about existing issues with Con Edison bills or customer service, which is fine; Con Edison has requested that we inform you that speakers who need assistance with individual account or customer service issues can contact Con Edison for assistance at (212) 358-3791 or via email at assist@coned.com. That's (212) 358-3791 or via email at A-S-S-I-S-T, @ symbol, C-O-N-E-D.C-O-M. Provide the name on your account, phone number, service address and nature of your inquiry. Con Edison states that these channels will be monitored from 9 a.m. through 10 p.m. today, April 9th, and through 5 p.m. on April 10th and 11th, and that customers will receive an initial response within twenty-four hours. To learn more about your bill and available bill pay assistance, you can also visit coned.com/billassistance; that's

C-O-N-E-D.C-O-M/B-I-L-L-A-S-S-I-S-T-A-N-C-E. After April 11th, customers can contact the company through existing channels found at coned.com/contactus; C-O-N-E-D.C-O-M/C-O-N-T-A-C-T-U-S.

Also, if you cannot resolve your issues with Con Edison, you can contact the Department of Public Service Customer Service helpline at 1-800-342-3377 from 8:30 a.m. to 4 p.m., Monday through Friday. Again, that number is 1-800-342-3377. You can find further information about the complaint process on the Department's website at www.dps.ny.gov.

Okay, we are ready to begin and have thirty-four people registered to speak. When I call your name, if you have joined us electronically, please raise your hand. Or if you are appearing by phone, press star 3 so we can unmute you. We ask that you do not raise your hand until I call your name.

When you are speaking, please begin by stating and spelling your name. And if you are speaking on behalf of an organization, the name of the organization; please speak slowly and clearly so that the court reporter can accurately capture your

statement for the record. Again, I will be calling your name. If you have joined electronically, please raise your hand; and if you are dialing in by phone, you'll press star 3 when I call your name.

We will now turn to our first speaker, who is Jewel Williams Johnson.

If you could raise your hand or press star 3. Okay. It looks like you're unmuted. Would you please state and spell your name for the record? And then you may make your comment.

MS. WILLIAMS JOHNSON: Thank you. My name is Jewel, J-E-W-E-L, Williams Johnson, W-I-L-L-I-A-M-S, J-O-H-N-S-O-N.

Good evening, and thank you for the opportunity to speak. I'm before you this evening not in any official capacity, but as a lifelong New Yorker, a resident of Westchester County, and as someone who, like so many others, opens our utility bill each month and quietly wonders just how much more can be expected -- can we be expected to take. We are already living in a time of unprecedented financial pressure; rising food costs, housing insecurity, and wages that simply are not keeping pace. And now we're faced with the proposition of

yet another significant rate increase from Consolidated Edison. Never mind the increases we already struggling to absorb. Now we're being asked to carry even more of a burden so that ConEd, already flush with profit, can continue to reward its executives with multimillion dollar salaries and bonuses. I am sorry, but that is not just bad optics, it is a moral failure.

We are told these increases are necessary to fund critical infrastructure upgrades. But when we press for details, what upgrades and where, we find nothing planned that will directly benefit the communities of Westchester; nothing meaningful in the pipeline to justify such a crushing cost to families and seniors already stretched thin. How can anyone support a rate increase for infrastructure when the very infrastructure in our region has been left off the blueprint?

Let's be clear, this is not about shared sacrifice. This is about a massive utility company shifting the weight of its own ambitions onto the backs of working people. We're not fools. We see the disparity. We see the data centers, the crypto mining operations, the high capacity users

soaking up electricity at an astronomical rate. And yet it is our households, our small businesses, our neighbors who are being asked to foot the bill. It is galling, and frankly, it's unjust. I speak this evening because I have heard from countless neighbors, those who are mothers, retirees, local shopkeepers who are frightened by these bills; who are sacrificing basic needs to keep the lights on; and I have felt that exact same anxiety myself. This is not a theoretical policy debate, it is deeply personal. It is about whether people can live with dignity in their own homes.

I urge the Public Service Commission to reject this proposed rate hike, not only because it is economically unsound, but because it is ethically indefensible. If there is to be any increase in rates, let it be met with equal -- no, greater investment in the people who pay them. Start with a reduction; start with accountability; start by restoring trust. Let this be the moment you choose people over profit, that is what justice looks like. And that is what we in Westchester and across New York State are calling for -- loudly, clearly, and together. Thank you for this opportunity.

A.L.J. PLANTY: Thank you.

Our next speaker is Shelley Mayer. I don't know if you can unmute yourself on your end.

MS. MAYER: No, no I can't.

A.L.J. PLANTY: Yes. We hear you.

MS. MAYER: Oh, you hear me? Okay.

A.L.J. PLANTY: Yes.

MS. MAYER: I have an echo. I think I'm --

MR. WHITE: You have -- Ms. Mayer? This is Joseph. I'm the host of the hearing. You have two devices turned on right now. You need to turn the one off that you're not speaking through. And that's why you're having an echo, ma'am.

MS. MAYER: Yes, I see.

MR. WHITE: Thank you.

MS. MAYER: Let me go off and come back on, if you don't mind. So I can do that.

MR. WHITE: That's fine, ma'am. Thank you.

A.L.J. PLANTY: Okay. We're going to go on to the next speaker and we can come back. The next speaker is Maureen DeTone. I apologize if I say anyone's name incorrectly. It's D-E-T-O-N-E. If you

could either raise your hand or press star 3 if you've called in, Maureen DeTone.

MR. WHITE: No raised hand, Your Honor.

A.L.J. PLANTY: Okay. Thank you.

Okay. I see Shelly Mayer. If we could unmute her, please.

MS. MAYER: Thank you. Can you hear me now?

A.L.J. PLANTY: Yes. Go ahead. Thank you.

MS. MAYER: Good evening, and thank you, administrative law judges, I am Shelley Mayer, S-H-E-L-L-E-Y, M-A-Y-E-R, state senator for the 37th Senate District in Westchester. I represent cities from Yonkers to White Plains, towns from Eastchester to Harrison, and villages from Larchmont to Port Chester. The vast majority of my constituents are dependent on ConEd for their utilities and I speak on their behalf. I will also be submitting my testimony in writing.

Today, I speak in strong opposition to ConEd's proposed 1.6 billion dollar electric rate increase and 440 million gas rate increase, increases

which ConEd itself estimates would result, as you noted earlier, in overall electric customer bill increases of approximately 11.4 percent and overall gas customer bill increases of 13.3 percent.

As you know, in 2023, the PSC approved delivery rate increases for ConEd in the amount of 1.37 billion for electricity and 562 million for gas over three years. The 2023 rate increase followed on the heels of successive rate increase approvals in 2020 and 2017.

It's worth noting that the PSC's 2023 projections of the increase in cost to the average customer when the last rate case was settled, of average monthly bill increases of under fifteen dollars a month for residential electric, and under seventeen dollars a month for gas have proven to be completely inaccurate. And I have no reason to think that these current projections are accurate either.

And while in 2022 spikes in the energy market impacting supply costs were a prime driver for high utility bills, now the main cause for concern is skyrocketing delivery charges. I'm sure you have heard that constituent after constituent has called my office for help in the past several winters, and

particularly this year, sending us bills that indicate delivery charges two or three times as high as supply. Hundreds of ConEd customers are urging this body to reject another rate increase, and you need to hear their voices. These newly proposed increases are simply unaffordable for older residents living on Social Security; for those working on close to minimum wage who struggle to afford the cost of living; and increasingly for thousands of middle income residents in my district who simply cannot afford them. Too many of them are struggling just to avoid ever increasing bills, but they cannot do so by reducing their usage because it's delivery charge, not the supply charge that is killing them.

A rate increase of this magnitude sought by ConEd will have a significant negative impact on my constituents' abilities to make ends meet, and could thrust them into utility debt, for which might be the first time in their lives. I have made no secret of my opposition to this rate proposal and the process by which these rates are set. I take particular issue with ConEd's proposed increase on its own profits through a return on equity enhancement. Judging from their statements and their

pay, their profits are already high enough. The company is asking for a ten percent return on equity investment, which is more than any New York utility has received in thirty years, and significantly higher than the already too high 8.8 percent return on equity approved in 2020; and the 9.25 percent return approved in 2023.

My proposed legislation to revamp the return on equity calculation would significantly limit the ability of utilities to obtain these excessive profits at the expense of ratepayers. But until it becomes law, we can only implore you to revisit this methodology.

Today, I call on the PSC to categorically reject the requested increase and to scrutinize all operational costs claimed by the company. I urge you, reject any rate increase, reject the excessive profit ConEd is trying to make, and stick resolutely and far more proactively to your legal mandate to protect New Yorkers.

Lastly, while I appreciate that the Public Service Commission has decided to hold at least one hearing in Westchester, I urge you to hold several more. There are thousands of Westchester

residents in my district and beyond who are absolutely determined to make sure that the ConEd rate does not increase in the next rate application.

Thank you for the opportunity to provide my comments, and I intend to continue to make my voice heard on behalf of my constituents. Thank you.

A.L.J. PLANTY: Thank you for your comment.

Our next speaker is Ariana Schesny. If you could raise your hand if you're logged in electronically or press star 3 if you phoned in, Ariana Schesny. Okay, not seeing --

MR. WHITE: If you don't mind. Did you call Maureen DeTone, sir?

A.L.J. PLANTY: I did.

MR. WHITE: There is a Maureen present.

A.L.J. PLANTY: Okay.

MR. WHITE: Do you want me to try to unmute that Maureen, and see if that's the Maureen you're looking for, sir?

A.L.J. PLANTY: Yeah.

Just if that's Maureen DeTone, if

you're logged in electronically, if you could raise your hand or if you've called in by phone, if you could press star 3. Okay. And I will be circling back to people that I call who are not available, or not answering, or not here yet. I'll be circling back at the end.

Okay. So our next speaker --

Thank you, Mr. White.

So our next speaker is Roseanne Cirasella, C-I-R-A-S-E-L-L-A, Roseanne? If you could raise your hand or press star 3 if you phoned in. Okay. Not seeing anyone. Okay.

Our next speaker is AnneMarie Kaufman. AnneMarie Kaufman, if you can raise your hand or press star 3.

Okay. Our next speaker is listed as CP. We have you down as CP. If you could either raise your hand or press star 3 so we can unmute you.

Okay. Moving on to our next speaker, Shawina Jardine, Shawina Jardine. Not seeing anyone.

Next on the list is William Green. William Green, if you could raise your hand or press star 3. Not seeing anyone.

Joyce Bellish, Joyce Bellish, star 3

or raise your hand.

Okay. Ana Munoz, M-U-N-O-Z. Ana Munoz. Not seeing anyone.

Carmella Pervizi, Carmella Pervizi.

Okay. Next on the list is Piper Werle, W-E-R-L-E, Piper Werle. Not seeing anyone.

Again, if your name is called, please raise your hand if you're logged in electronically or press star 3 if you've phoned in.

Luis Puma, Luis Puma. Not seeing anyone.

Mordechai Besser, Mordechai Besser.

Okay. Moving on. Oh, oh, I do see a hand.

MR. WHITE: There's a raised hand, Your Honor. Yep.

A.L.J. PLANTY: Okay.

MR. WHITE: Oh, they lowered it. But Maureen has her hand raised, sir.

A.L.J. PLANTY: Okay.

MR. WHITE: Would you like to unmute Maureen?

A.L.J. PLANTY: Yes.

MR. WHITE: Okay.

A.L.J. PLANTY: Thank you.

MR. WHITE: Sure.

MS. DETONE: Hey, this is Maureen DeTone, and I apologize because I am not very tech savvy here.

A.L.J. PLANTY: That's fine.

MS. DETONE: Okay.

A.L.J. PLANTY: If you could just please spell your name for the record --

MS. DETONE: Sure.

A.L.J. PLANTY: -- and then you can go ahead and make your comment. Thank you.

MS. DETONE: It's Maureen, M-A-U-R-E-E-N, DeTone, D-E-T-O-N-E.

A.L.J. PLANTY: Okay. Thank you. You can go ahead and make your comment.

MS. DETONE: Okay. I am just very upset about the monthly bills that my husband and I are receiving. We're senior citizens, we're on a fixed income, and you're forcing us out of our home by these rate increases. We're living in a house that literally we keep at sixty-four degrees. My husband has -- he's laughing, but he has a pretty much a two -- a sweater, a jacket, just because it's

crazy that the these -- these bills are coming in at 700, 1,000 dollars a month, and I get a ConEd bill every month that says that we're above the norm rate, and we're keeping our temperature between sixty-four and sixty-seven. So I don't know what other people are doing in the community, but it's ridiculous. Even our children that live in Westchester, they're spending more -- thousands of dollars on their monthly bills. I think ConEd, I think the Public Service Commission needs to audit what is increasing these rates. And I understand ConEd has an infrastructure issue. They've got to maintain our -- our gas lines and all of that. But is anybody auditing what they're charging for all of this work that they're doing? Is this legitimate? I just don't understand it. And I don't know how in the future we're going to maintain our lives here in Westchester. Thank you.

A.L.J. PLANTY: Thank you.

Okay. I'm going to call Mordechai Besser again. If you could either raise your hand or press star 3. Okay. We have a call-in user.

Go ahead. You may have to --

MR. BESSER: Hi.

A.L.J. PLANTY: Oh, hi. We can hear you.

MR. BESSER: Great. My name is Mordechai Besser, M-O-R-D-E-C-H-A-I, B as in boy, E-S-S-E-R. I live in Queens. I'm seventy-eight years old. I live with my wife in an eighteen-foot, relatively small house. The house has partial oil heating and partial gas heating. When I -- most of the house's oil heat, when I read in the newspapers that the average monthly bill is 150 to 200 dollars, it makes my blood boil because our bill averages 850 dollars a month. And if it's going up ten percent on 150, that's 15 dollars a month. If our bills go up, you can figure out the math, you don't need me. I don't know how long we can survive.

The last speaker is a hundred percent right. We are being forced out of our house. And in fact, the breakdown that they have started sending every month, giving us a weekly breakdown, is fake. Because there were three days that we were away, our entire system was shut down. And ConEd was kind enough to tell me that two of those days were the highest consumption.

And I don't understand the delivery

piece, the delivery piece on both, which dwarfs the actual bill. I implore you to turn this raise request down. Thanks for listening.

A.L.J. PLANTY: Thank you for your comment.

Next is Steve Smith. If you could raise your hand. Okay. I see we have --

MR. SMITH: Hi, I'm Steve Smith, a resident of New Rochelle, speaking on behalf of myself and my family. Thank you for the opportunity to make four brief comments framed as specific recommendations. I've been a ConEd customer my entire life, and my experience, along with that of many others I've spoken to, suggests that ConEd's culture assumes annual rate increases will be granted. It appears that the requested increase is intentionally inflated to ensure that the increase ultimately granted meets a targeted amount. ConEd requires regulation aimed at reversing this pattern.

First, nearly all well-managed, technology oriented companies have experienced decreasing unit costs over the past five to ten years, or even longer. ConEd's history of rising rates suggests that it is not fully or effectively

utilizing technology and modern management practices. An example, the rate per kilowatt hour charged by Duke Energy declined by sixteen percent year over year recently, and that trend continues. ConEd rate increase requests should be matched with an expectation of rate declines in all or specific business areas.

Second, ConEd executive salaries and bonuses -- yes, both salaries and bonuses should be pegged to progress in reducing costs, using technology more effectively and lowering rates. Salary.com reports that the fiscal year ending 2023, Timothy Cawley, CEO, received a base pay of 1.3 million, along with a bonus of -- and other compensation that brought his total compensation package to more than 6.6 million in the year -- that's outrageous.

Five other named officers had total compensation of between 2.3 and 4.7 million. As one who's funding these salaries again, I'll say, outrageous. I understand the argument that the utility operates in a specific labor market, and their current salary structure is necessary to attract and retain staff. However, one of the key

fallacies of this argument is the assumption that the executive suite is critical to the company's ongoing operations. This assumption is incorrect, as demonstrated in various industries and by the current startup environment, where companies attract top talent from a labor pool that finds satisfaction in solving problems and enhancing customer experience in addition to monetary rewards.

Third, and perhaps most importantly, ConEd has no competition, which is a classic indicator of its management and technology shortcomings. If we inform the proverbial man from Mars that we were discussing a company with a monopolistic hold on the market and power to request and receive annual price increases, I do not doubt that he or she would suggest introducing competition. I urge you, as regulators, to foster effective competition. And I emphasize the word effective because the few companies that currently provide parts of ConEd services are merely fig leaves. They make it appear as if there is competition, but they are not really competitors.

Finally, these recommendations concerning management and technology, salaries and

competition must be rigorously monitored and audited by independent observers, who have the authority to set objectives, identify milestones, and impose penalties when milestones are not achieved. I urge the Commission, the governor, and the legislature to reject ConEd's proposal and replace it with a counter-proposal that holds both regulators and ConEd accountable, and works to end the culture of annual rate increases. Thank you for the opportunity to address this meeting, and I would be glad to meet with you at your convenience to follow up on my comments.

A.L.J. PLANTY: Thank you for your comment.

If I could just ask -- I see a couple people have their hands up. If you could just put your hand down until you're called on, please. I do have a list in order of when you registered. So we will get to you.

Next on the list is Bonnie Archer, Bonnie Archer. Again, if you can raise your hand when you're called or star 3 if you phoned in.

Next is Sabrina Delgado, Sabrina Delgado. Not seeing anyone.

Karin Magnuson, Karin Magnuson.

Okay. Moving on to Frances Pettiford Johnson, Frances Pettiford Johnson, if you could either raise your hand or press star 3 if you've phoned in so we can recognize you.

Okay. Moving on to Mark --

Oh, we have Frances Pettiford Johnson.

MS. PETTIFORD JOHNSON: Yes. I -- well, mine is not going to be quite as drawn out as the others because I didn't prepare for it. But I can say that my bills are so high that there's no way that I will be able to continue even with the charges that I'm getting now. On my bill, as far as gas is concerned, I consumed less than 300 dollars. However, the delivery charges were triple that amount, bringing my bill up to close to 1,000 dollars. I don't use my gas. I turn my heat on maybe for let's say, the most -- well, two hours a day sometimes when I forget to turn it off. Not completely, but down to sixty. And this is -- this house is built well. So since it's a strong house, it will -- the heat will stay -- it will stay, you know, pretty warm in here; it doesn't drop below sixty. And we'll say, you know, warm like so that

basically all day. So I'll cut it on to let's say in the morning and I'll leave it off all day and I'll, of course, I'll have a little jacket on. And then in the evening I might cut it on to heat the house up, just heat it up so that I'm what I'm mainly -- mainly concerned about is that the pipes don't freeze. So I'll -- I won't cut it down any lower than sixty degrees, but I'm pretty sure that's higher than I need to -- to have it. But nevertheless, all I'm using is -- all I'm consuming is less than 300 dollars or 280-some dollars, I think. But my bill just for the gas, not even talking about the electric because the electric is the same. But I don't use that much electric. 45 dollars and it'll come out to almost 200 dollars, and I can't -- I cannot afford to pay that. As a matter of fact, if there were other people living on the floors above, I wouldn't be able to leave it. I wouldn't be able to only have it up for two hours, let's say two hours each day. Out of twenty-four hours, I have it up two hours a day, and my bill is 1,000. Suppose I looked like I was doing in the past, left the heat on so that it was cozy in here all day and just turn it down in the evening. I wouldn't be able to afford it at all. It would

probably be 4,000 dollars a month. How can I handle that? It's absolute -- it's too high now. And if it's increased any higher, as the previous speaker said -- and even if it doesn't go higher, I will not be able to keep my house, keep the place that I have had for fifty years and never had a problem. It's -- it's just intolerable. I think it's unfair and I don't know if there's anything else that I can say at this point. It's just that it's -- it can't go on like this. Thank you.

A.L.J. PLANTY: Thank you for your comment.

Mark Manley.

MR. MANLEY: Hello?

A.L.J. PLANTY: Yes, we can hear you. Would you please state and spell your name for the record and then give your comment?

MR. MANLY: Sure. It's Mark Manley, M-A-R-K, M-A-N-L-E-Y, from Larchmont, New York. I certainly feel for everybody and their increased bills and situations. I'm -- I do want to -- the Commission to consider the impacts of climate change that -- that I think are certainly increasing the -- ultimately the delivery costs. We're having more

frequency of -- or greater frequency and greater impacts of storm events, et cetera, that require ConEd to go out and repair lines and so on so that we can, you know, kind of restore our electric service. And that isn't really ConEd's fault, necessarily. I mean, maybe if they had had coal generation or whatever in the past, they're partly to blame for that. But you know, I think -- I think the Commission, of course, needs to understand that -- that those impacts are real as well.

There are other things like property taxes, et cetera, that -- that are rising quite significantly and pass through to ConEd, and ConEd ultimately has to pass on to their customers. So I'm probably atypical of most speakers here, just sort of considering the -- the other side of the argument of why costs are going up.

I also encourage the Commission not to -- we -- we all need to reduce our fossil fuel consumption and try to mitigate that. So when -- when consumption is related to fossil fuels and not that it necessarily has to be, right? We can -- we can deliver clean green energy. But -- but one way to incentivize people not to do that is, you know,

charge them -- charge them more for that. So maybe there's, you know, things the Commission can consider there as well.

I think maybe one of the ways to ease the pain on the average homeowner or an average citizen is to direct more of the costs or more of the rates towards commercial users, right? Commercial users have perhaps more, you know, ability and resources to engage in energy efficiency. Particularly, you know, we have a lot of condos and apartments in the New York area -- a big part of ConEd's customers. So encourage them to, you know, have more energy efficient measures built into their -- into their buildings would be a great way. So anyway, I'll leave it at that. But just want to consider all aspects as well.

A.L.J. PLANTY: Thank you.

Next is John Barufka, John Barufka.

MR. WHITE: John, go ahead. Your line was unmuted. Let me unmute you again. There you go.

A.L.J. PLANTY: Thank you.

MR. WHITE: Let me unmute you, John. There you go.

MR. BARUFKA: Yes. Okay. Thank you.

MR. WHITE: Thank you.

MR. BARUFKA: Thank you.

MR. WHITE: Sure.

MR. BARUFKA: Name is Jonathan Barufka, B-A-R-U-K-A. Just calling in as a private citizen. The only comment I wanted to make was in 2022, I converted to solar, which was a great investment, but I continue to run at a credit. I contribute more to the grid. And I have a pretty significant credit with ConEd, and I don't get compensated for it, so I think -- I feel like the least that ConEd could do is distribute, you know, they resell my power, and they're reselling it to my neighbors, and now they're increasing the rate to my neighbors. There are a lot of people in my area that have solar, and I'm sure they're in the same situation where we're contributing to ConEd, we have a credit. We're not getting compensated, and you're reselling it, and you're increasing prices to our neighbors. And I feel like that's taking advantage of my neighbors.

And in addition to my credit, they still charge me thirty dollars a month just to be on the grid for, you know, basic service fees. So I

just feel taken advantage of. That's it.

A.L.J. PLANTY: Thank you for your comment.

Next we have Elizabeth Feldman. You should be unmuted.

MS. FELDMAN: Okay. Hi, I'm Elizabeth Feldman. I'm also the supervisor of the Town of Ossining. And I'm here on behalf of not only myself, but of the 40,000 constituents that we have. We're a very diverse community, and we have many low income residents, ones that are trying -- having to choose between heat and food. This rate would -- it would hurt -- would hurt them, it would impact their lives very negatively. You know, as -- as we watch the record profits and you know, paying for lobbyists and everything else, I would really ask that -- I would ask that when you're looking at a rate increase, that it's based on the supply and the delivery aspects of what they do and not their lobbying to be able to ask for these increases.

You know, not only do these impact -- these increases impact our residents on their utility bill, but the local businesses will be paying more. That will be passed on to the local customers, and

the municipality will be charged more, which, you know, we don't have a have a pot of money here. We have to add -- increase their taxes. So it's just another hit to the same pool of people.

The municipality is required by the state to stay within a two percent tax cap. That includes our infrastructure and our capital projects. I feel like, you know, I understand that there's more hardening needed to the system for the increasing storms, but I feel like, you know, they're running hog wild and not really having to watch a budget. They -- they just keep coming and asking for more and more and more. And quite honestly, a lot of the residents don't have more, you know, and when the heat gets shut off, the building gets shut down and now they're homeless. So it's -- it's very impactful, these increases. It's not -- and you know, something in a silo. This has real effects to our to our residents. Yeah. I really beg the Commission to take a close look at it. I would love to see competition. I don't think it's fair to have people's lives held by one company and -- and them increasing their rates so often and so -- so drastically.

I have a 1,000 square foot home. My bill last month was 1,100 -- over 1,100 dollars. And I keep my -- my heat at sixty-three; it's ridiculous. Anyway, thank you for your time. Thank you for your consideration. Please do what you can to make the lives of our residents more -- more livable, more affordable. Thank you.

A.L.J. PLANTY: Thank you for your comment.

Next is Segundo Tamayo, Segundo Tamayo. Not seeing anyone.

MaryJane Shimsky.

MS. SHIMSKY: Yes. Good evening. I'm MaryJane Shimsky. I am the assembly member for the 92nd Assembly District, which includes almost all of the Town of Greenburg, including the six villages. I represent the Town of Mount Pleasant, including Pleasantville and Sleepy Hollow, and part of the Greystone section of Yonkers. I cannot emphasize enough that we are at a real crossroads here. This -- the utility bills that people are being forced to pay by ConEd, these costs are simply unsustainable for most of the customer base. The -- the stories, the hardship stories we get about folks'

ConEd bills -- are now far and away in what is considered one of the most affluent assembly districts, the most frequent issue we get from our constituents, whether it's emails, phone calls, and so on.

When -- at a time when the cost of living increase for Social Security is 2.5 percent, ConEd is asking for 11.4 percent and 13.3 percent increases. This cannot continue. And at the same time, ConEd is making large record corporate profits. There's an 11.8 percent increase in third quarter per-share earnings. For many, many years, ConEd ignored most of the maintenance they had to do. So what we're dealing with is a company that is doing great for their shareholders, but over 439,000 ConEd residential customers are more than sixty days behind on their utility bills. Next to housing, this is the biggest part of the affordability crisis for people in ConEd country.

I urge the -- the Public Utilities Commission to very carefully determine where the customer's money is going; how much is going to corporate profits; what can be done to make capital expenditures more cost effective; what profit margins

are like for ConEd, both as sellers and as buyers; what we can do conservation-wise. We need to figure out how we can continue to make electricity, which is a great -- one of the big necessities of life for people in the twenty-first century. How we can continue to make electricity affordable for the people who rely, who are forced to rely on ConEd -- which has historically, by the way, had the highest, if not among the highest rates anywhere in the country. And the -- as I said, the -- the disparity between what people are bringing in compared to the increases that they have to foot from the utility. It's just not sustainable anymore. And I really urge the Commission to take a very careful look at all of this and figure out where we go from here. Our people, ConEd, and our regional economy. Thank you very much.

A.L.J. PLANTY: Thank you.

Next is Shanae Williams. You should be unmuted.

MS. WILLIAMS: I am, thank you. Hello. My name is Shane Williams, and I am not here in my official role as Westchester County legislator. I am here as a -- a -- a -- a resident of Westchester

in -- of New York State. I'm here to respectfully urge you to reject Con Edison's proposed rate increases. New Yorkers are already facing unprecedented financial pressure from housing, to food, to health care; every basic necessity costs more. And now our energy bills may raise even further. This proposal would increase electric and gas rates by thirteen and eleven percent per household. For families, that is simply unaffordable.

As a millennial, as a renter, as a single person, as a working person living paycheck to paycheck, I am feeling the effects of the current high rates. I have seen my Con Edison bill go from 110 dollars one month to 375 the next, and most recently -- literally a few days ago, over 600 dollars, which is absolutely ridiculous. I have heard from so many of my neighbors and friends with similar situations, and it is simply unacceptable. Why should I or any other hard working New Yorker or Westchester resident pay these absurd rates to a monopoly that has a CEO and shareholders that are getting rich off our backs as we struggle to make ends meet. It doesn't make sense.

I want to acknowledge and appreciate that Con Edison offers assistance programs, and even shared that in the beginning of this call for those who are struggling to pay their bills; that support matters. But the truth is, it's not enough. And if these rate hikes are approved, the need will grow even more. Let's remember, Con Edison is a profitable utility company. Their shareholders are protected. Their executives are very well compensated. But it's the everyday New Yorker, it's people like me, it's families, it's seniors, it's small businesses who will bear the brunt of this increase. And that's not fair. And it's certainly not sustainable.

Yes, we need investments in infrastructure and clean energy, but we must not pursue these goals at the cost of equity and affordability. Con Edison must be required to do more internally, cut costs, manage projects efficiently, and contribute more of their own capital before turning to ratepayers and -- and taxpayers like us.

This Commission is charged with protecting the public interest. So I urge you --

strongly urge you to stand with us, stand with working New Yorkers and deny this pay -- this rate increase. Thank you.

A.L.J. PLANTY: Thank you.

Next is Rachel Breinin, Rachel Breinin.

MS. BREININ: Rachel Breinin, R-A-C-H-E-L, Breinin, B as in boy, R-E-I-N as in Nancy, I-N as in Nancy.

Thank you for giving me this opportunity. One of the most discussed issues on our city's Facebook page has been people's exorbitant ConEd bills, especially for the delivery cost. People have lowered their heat as much as they can, yet -- and wear two sweaters at a time, yet their bills increase. For the past two years, we've tried to get ConEd to give us an accurate reading of our gas usage. We have scheduled numerous home visits for workers to check our meter, and our meter has been changed at least once. Many times we have stayed home and no workers showed up, only to be told after the fact that our appointment had been canceled. However, we were never notified even though ConEd has both our email and phone number on

file. We still are only getting estimated statements. These estimated statements have been enormous. Despite the fact that we were away for three months this winter to help with our grandchildren, the bills still kept coming and they were huge. During those time periods, our heat was set at a low temperature. While we wait for ConEd to come out and provide us an accurate reading of our actual gas usage, we have no idea how much we actually owe.

What is equally upsetting is how much the delivery fees are. There seems to be absolutely no accountability for ConEd's incredibly poor service, or its extremely high charges for gas and delivery. Yet the prices still seem to go up. I saw recently that ConEd stock was one of the top performers for the S&P 500 for the first quarter of 2025, up 24.2 percent. And this was before the most recent market drop. And ConEd wants to increase their fees. This is shameful. Please reject their request. Thank you very much.

A.L.J. PLANTY: Thank you.

Next is Joan O'Brien, Joan O'Brien. You should be --

MS. O'BRIEN: Can you hear me?

A.L.J. PLANTY: -- unmuted.

Yes.

MS. O'BRIEN: It's Joan O'Brien. J-O-A-N, O-'-B-R-I-E-N. Thank you for the opportunity. If -- can you hear me?

A.L.J. PLANTY: Yes, we can hear you. Please go ahead.

MS. O'BRIEN: Okay. Thank you. Thank you for the opportunity to -- I -- to share my thoughts about what's happening with our Con Edison bills. I really feel like we're being held hostage. And I appreciate everybody's comments so far, because I think they've hit pretty much every point. So I won't be long. Recently, moved into the Fleetwood area of Mount Vernon. Was previously a Pelham resident, and I've seen my bills double just since I've moved here in the last six months, getting a bill of almost 1,000 dollars when we moved into this house. We have supposedly energy efficient split units and very little gas other than for hot water and the stove, and receiving 1,000-dollar bill. And I'm keeping our temperature at about sixty-two to sixty-four. The only one appreciating it is my black

Labrador dog who loves it cold and basically, like everyone else, been wearing coats and everything else just to keep warm over this very frigid winter. I was appalled to see the kind of carrying charges that they're -- that they're -- I can't understand how they justify them when it's double the amount of my usage charge. Example, if I have a 200-dollar electric usage, the delivery charge is 400 dollars, making my total electric bill now 600 dollars. It's unaffordable. I don't see how people can maintain these kind of rates and then they expect to have an increase? I'd really love to have an explanation of what these delivery charges are offering us. What are they -- can we find out what these delivery charges are? It's not explained in our bill.

And I just think they're going to drive people out of this area because we won't be able to afford to live here between property taxes and our utility charges. And so I'll leave it at that, because I know everybody else has hit most of the points. And I appreciate the time and opportunity to speak my mind. And I really request and ask that you not allow these increases to happen. And there needs to be an investigation into ConEd,

because they do have a monopoly, and most of us do not understand where these charges are coming from, how they justify them. And we would like to know that. So thank you very, very much.

A.L.J. PLANTY: Thank you for your comment.

Our next speaker is Karon Norman, Karon Norman.

MR. WHITE: It's possible she called in, Your Honor. She's not here electronically.

A.L.J. PLANTY: Okay.

We'll move on. Jared Pereir, Jared Pereir. Again, if you're logged in electronically, please raise your hand. If you phoned in and I call your name, please press star 3 so we can recognize you.

Jared Pereir.

Okay. Next we have Jenny Walker. You should be unmuted.

MS. WALKER: Can you hear me?

A.L.J. PLANTY: Yes, we can hear you.

MS. WALKER: Oh, good. Thank you. My name is Jenny Walker, J-E-N-N-Y, W-A-L-K-E-R. I live in Manhattan. Likewise, I appreciated the prior

comments, since I will try to be succinct. I'm speaking as a senior citizen, as a community person, raising concerns not just for myself, but for family, friends, and neighbors, who are not able to speak themselves today.

The proposed rate hikes are untenable and unaffordable by the vast numbers of New York City and New York State residents who are already struggling to meet rent, utility, food, and transportation costs, let alone the luxuries of clothing, medical, school, or camp related costs. Gas and electric are essentials. They are not luxuries, and Con Edison is a Company that makes a big profit off of providing those essentials. Con Edison should -- never take responsibility for their own poor or bad management decisions, and simply expects to pass the costs on to us in rate increase after rate increase. They should not be rewarded for the decades of refusing to move forward on maintenance, and on developing cleaner and more efficient sources. Yet we watch the super wealthy and the mega users skate by while we the people are asked to foot the costs once again. And each year, ConEd assumes that we will pay more and more and

more, and there's no -- no limit.

Finally, since delivery charges allow no one to cut back or avoid the cost, I urge that these increases -- all these increases actually, be denied and the Commission go back and implement a better assessment of what -- what justifies an increase of any kind this year and how much -- and sets goals and standards for how do they go forward asking for increases in the future. Asking for a million dollars when you only really want 100,000 dollars is not -- not a good game to play.

And so I simply ask that the Commission deny these -- these rate increases and allow us to try to move forward and to survive. Thank you very much for your time and let me make the comments.

A.L.J. PLANTY: Thank you for your comment.

Next is Sherry Agredo, Sherry Agredo.

Moving on to Stephen K, Stephen K.

Moving on to Allison Silvers, Allison Silvers you should be unmuted if you want to go ahead.

MS. SILVERS: Yes. Hi, Allison

Silvers, A-L-L-I-S-O-N, S-I-L-V-E-R-S. I want to, again, as others have, underscore the previous comments that have been coming, I think you're clearly getting a picture that the -- the rates are just unsustainable and people are saying they'll have to move. I don't think there's enough rich people to fill up ConEd's coffers, even if we all pick up and move.

But I want to direct my major comment to the Public Service Commission. ConEd was granted a monopoly. And the legislation that governs this, the intent is that there's a body to oversee ConEd and its pricing to, in effect, make sure that the people are protected. I feel like the Public Service Commission has a duty to protect the people, and it's perhaps been interpreted as a duty to make sure that ConEd has a sufficient revenue stream. But as you've heard and I did my did my research too, ConEd's earnings per share, and their stock price, and everything else is doing just fine. So I don't think they need the protection. I think it is the residents of Westchester that need the protection now.

And the only other thing I'll mention

maybe you've seen it, but John Oliver did a piece about utilities, and the expectation is that you put in a rate increase and you get it. And the opportunity to make a ten percent increase on any investments. But we are at a time now where Con Edison has already for many years now taken advantage of that. And I think -- I think this rate increase that is before you now is just going to break the consumers that are living here. And I just urge you to take your responsibility seriously about protecting the public. Thank you.

A.L.J. PLANTY: Thank you for your comment. I see we have some call-in users. I'm just going to go back through the list of people that registered, that I called earlier, just in case they've joined since. Again, if you've joined electronically, raise your hand when I call your name. If you phoned in, please press star 3.

Ariana Schesny, Ariana Schesny.

Roseanne Cirasella, Roseanne Cirasella.

AnneMarie Kaufman.

CP.

Shawina Jardine.

William Green.

Joyce Bellish.

Ana Munoz.

Carmella Pervizi.

Piper Werle.

Luis Puma.

Bonnie Archer.

Sabrina Delgado.

Karin Magnuson.

Segundo Tamayo.

Karon Norman.

Jared Pereir.

Sherry Algredo.

Stephen K.

Okay. We can now proceed to call-in users. I believe we have --

MR. WHITE: Yes, we do. Yep. I was just going to let you know.

A.L.J. PLANTY: Okay. Thank you.

Barry Werbin, if you could go ahead, you should be unmuted.

MR. WERBIN: Yes, I am, thank you very much. I want to appreciate the opportunity to speak. I'm a homeowner, I live in Croton-on-Hudson, and I

think -- I'm also an attorney. And you know, deciphering a ConEd bill is a bit of de-encryption, but there are small footnotes that attempt to explain or summarize each of the line items in the bills. And I actually went back over my bills, excluding the summer months, I only have ConEd for electric. I have oil heat and so I've excluded the warm months June to September, but I but I did an analysis from 2020 to the first quarter or so or first three months of this year's billings, focusing on what's called the basic service charge, which ConEd describes in its bill as a charge for basic system infrastructure and customer-related services, including customer accounting and metering services.

I would say if my law firm charged my clients for internal accounting services, we would be fired. But it is what it is.

The other charge is the delivery costs, which I think is one of the heated issues under discussion today and what ConEd is seeking an increase for, which kind of describes simply as a charge for maintaining the system through which ConEd delivers electricity to you.

So I went back to my bills, excluding

the heavier use of air conditioning in the summer, and saw that between 2020 and '22, those charges, based on the kilowatt per hour rates, cents per kilowatt hours stayed fairly constant. They moved very, very modestly. But in the couple of years that followed, we saw a dramatic increase, particularly this year.

And I saw that doing the math, the basic service charge in approximately the last two years has increased about twenty-nine percent, twenty-nine percent. And the delivery charge, also in the last two years or so, has increased approximately twenty-eight to thirty percent. Now, those are fairly astounding increases in a relatively short time compared to prior years, '20, '21, '22, and '23, when it was fairly constant and didn't move nearly, you know, other than, you know, incrementally compared to these giant increases as to which ConEd now wants substantially higher increases. And I think the Commission needs to do the math, and inquire, and look at the numbers, because that's what we're talking about.

We're talking about numbers, accounting -- and someone else earlier on made the

comment, where is the money going? ConEd is a public company. I've also read the financial reports. You know, companies struggle, we understand that to maintain and build infrastructure. But when we see increases over twenty-four month period or so, twenty-eight, twenty-nine percent in these nonenergy related costs, infrastructure, internal administration, maintenance and the like, I -- it certainly raises red flags in my book. Thank you very much.

A.L.J. PLANTY: Thank you. And we'll continue with those that did not register that I said earlier call-in -- whether you've called in or you're joining electronically, if you've not registered and you wish to speak and give a comment, we can recognize you.

I see there's a hand up for a call-in user.

MS. CEBEK: Yes, that's me.

A.L.J. PLANTY: Okay. Please go ahead.

MS. CEBEK: Hi, good afternoon. My name is Kathy Cebek, that's C-E-B-E-K. I live in the Bronx. As many of the elected from Westchester, and

they discussed the numbers. But I believe Con Edison knows what they're asking to increase and how it will affect New Yorkers and so does the Public Service Commission. They want to boost revenue for clean energy investments and infrastructure and to meet the rising demand driven by building and transportation. Sorry, transportation electrification to align with New York State climate laws. Maybe we need to slow them down a little bit before we're ready for this.

Con Edison is a public company, and we -- they want us to pay their property taxes on their energy infrastructure? There's many people I know that own companies and the public does not pay their property taxes. If so, I mean, pay every New Yorker's property tax. Especially in New York City, which we pay a six percent tax where the rest of New York State pays two percent.

And also, I saw in the many articles written that they're going to use some of this money for the MTA, the -- the -- the MTA. It's like owning a boat, just keep throwing money in it and nothing improves.

But that being said, as a New Yorker an older New Yorker, my Con Edison bill for January

was 954 dollars. That's for heat and electric. And most of my neighbors have the same type of bills. So when I see Con Edison put out, oh, people's bills are 345 dollars. No they're not. I live in a detached -- semi-attached brick house, and it's not like we keep the heat on ninety or anything like that. It's just too much. And I would urge the Commission to vote no. And to the elected that spoke on this hearing, thank you for speaking for your constituents. And they should remember those that are not speaking on behalf of their constituents, that older in New York City are the voters. So please say no to this. It's just not fair. And the bills are just too high for everyday New Yorkers. Thank you so much. I appreciate it and again urge you to vote no. Thank you.

A.L.J. PLANTY: Thank you.

Okay. Jennifer Collins.

MR. WHITE: I just saw a hand go up, Your Honor. And then it went right back down, so I thought it did say Collins, but --

A.L.J. PLANTY: Okay.

MR. WHITE: Could you try again, please?

A.L.J. PLANTY: Again, if you -- there's Jennifer Collins.

You should be unmuted if you'd like to go ahead.

MR. WHITE: Okay.

A.L.J. PLANTY: You may have --

MR. WHITE: Okay.

A.L.J. PLANTY: Okay.

MR. WHITE: Jennifer, just -- yeah. Allow me to unmute you. There you go. We were -- I was unmuting Jennifer, and Jennifer was unmuting Jennifer at the same time.

MS. COLLINS: I'm sorry, I was trying to --

MR. WHITE: No, that's okay. Thank you.

MS. COLLINS: I joined on a phone, then I hung up on. I did want to speak, if that's possible.

A.L.J. PLANTY: Yes. Please go ahead.

MS. COLLINS: Thank you, so much for the opportunity to talk about this. I'm also from the Bronx and do pay ConEd as well. And I have a little bit of sort of like a little bit of facts that

I would like to address because it's important when considering fare hikes and -- excuse me, fare hikes. I heard her mention MTA. When considering hikes and increases in pricing things that they consider a whole bunch of factors.

So just the comments on ConEd's financial position at this moment. In 2024, ConEd reported a net income of 1,820 million for common stock with adjusted earnings. Also meaning -- just basically saying, excuse me, this reflects a solid financial performance, even after a dip of -- from 2,519 million in 2023, with -- with annual revenues around 15 billion in assets totaling 69 billion as of late 2024. ConEd isn't a struggling company. It's a profit -- excuse me, a profitable giant. And you can argue that they don't need to raise rates to stay afloat, and it just affects the consumer. And recent hikes are already in effect from ConEd implemented a three-year rate plan starting in August 2023 that was approved by the New York State Public Service Commission for residential customers using a certain amount of kilowatts a month, their bill rose 9.1 percent in 2023; in 2024, 4.2 percent, a $7.20 increase. And another 1 percent -- 1.4 percent in

2025 for gas customers. Now, these hikes -- these cumulative hikes have already added roughly twenty-four dollars monthly to electric bills. And that's forty-seven dollars extra to gas bills in -- by 2025.

Significant burdens for people especially this is before considering this new proposal. So for the proposed hike in 2026, they're proposing an 11.4 percent increase, if I'm not mistaken, electric rates and -- for electric rates and 13.3 percent increase in gas rates to be effective for January 2026.

This would generate an additional 1.6 billion in electric revenue for them, a 440 million in gas revenue. For an average electric customer, that's about 23 dollars more per month on a 200-dollar bill. Nearly 275 dollars yearly on top of that, on top of the 2000 through -- excuse me, 2023 through 2025 increases.

You know, I just wanted to highlight that because, you know, when considering to raise -- raise -- raise rates on people, I -- it's important that they consider the consumers because it's already hard in these times to adjust to the increased rates in everything. And it's not as if ConEd is

struggling to stay afloat. They're a profitable -- profitable business, and this is really hurting us. And I would love for it to be considered for them to -- for it not to be considered an increase because it's already hard and they already increased us. And it continues to, you know, put us in other positions where we're at the point where we have to choose between light and food or light and living. And it's hard, it's already a struggle, especially for certain rural areas or suburban areas as well. It's already a struggle right now. And you know, just the transparency, if they want to use the -- the green energy, or you know, modernizing the grid, fine. Those are all noble goals. But the burden always falls on the taxpayers, us, the ratepayers. Excuse me. And it's -- it's hurting, it's hurting us already.

So I would like and hope the Commissioner can -- the Commission can keep this in mind when approving or not approving them, because it's already hard. And another approval will just kind of put us in another position of struggling as Americans. And we want to kind of do better now already with the inflation that's going to be

happening and all types of stuff, this is going to just make it worse, especially for us. And that's what I would like to add.

A.L.J. PLANTY: Okay. Thank you for your comment.

If we have anyone else that would like to make a comment, if you've joined electronically, if you can raise your hand. If you've called in, if you can press star 3. We obviously have to go one by one, but we can recognize you so you can make your comment. Again, if you could raise your hand or press star 3 if there's anyone else out there who would like to make a comment at this time?

Okay. I would like to thank everyone who provided comments today. I would also like to remind everyone that we will be scheduling in-person public statement hearings throughout Con Edison's service territory, and a notice of those in-person public statement hearings will be issued in due course. Finally, please remember that comments may be submitted through the Department's website, by regular mail, or by phone.

The hearing is now concluded and we are off the record. Thank you.

(The hearing concluded at 6:49 p.m.)

STATE OF NEW YORK

I, VANESSA GONZALEZ, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 58, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 15th day of April, 2025.

VANESSA GONZALEZ, Reporter